

Association for Democratic Reforms (ADR) v. Union of India

Citation: (2024) 5 SCC 1 | Court: Supreme Court | Year: 2024

Coram: 5-Judge Constitution Bench (Unanimous) | Subject: Constitutional Law | Provisions: Art 19(1)(a), RPA 1951, Companies Act Sec 182

I. EXECUTIVE SUMMARY & CASE GLIMPSE

The Electoral Bond Scheme (2018) and related amendments to the Representation of the People Act, Companies Act, and Income Tax Act are unconstitutional. Voters have an inalienable Fundamental Right to Information under Article 19(1)(a) regarding political campaign finance and donor identities.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Art 19(1)(a), RPA 1951, Companies Act Sec 182. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Art 19(1)(a), RPA 1951, Companies Act Sec 182.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Information regarding political funding is essential for an elector to exercise their voting franchise meaningfully under Article 19(1)(a). The state interest in curbing black money does not satisfy the Proportionality Test because anonymous bonds are not the least restrictive measure.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Unanimously struck down anonymous Electoral Bonds Scheme 2018 as violative of Art 19(1)(a).
- â€ Invalidated unlimited corporate political contributions under Section 182 Companies Act.
- â€ Directed SBI to disclose all purchase and redemption records to the Election Commission for public release.